

SOFTWARE SERVICES AGREEMENT

Demo Document for NyayaLens — Fictional Agreement (Revised Draft v2)

Client: Apex Retail Solutions Pvt. Ltd.
Service Provider: BluePeak Technologies Pvt. Ltd.
Effective Date: 1 September 2026
Term: 12 months
Jurisdiction: Pune, Maharashtra, India

1. Services and Scope

The Service Provider shall provide software development, maintenance, technical support, and cloud hosting services described in the applicable Statement of Work. The Client may request additional services, but any material change in scope must be approved in writing by both parties.

2. Fees and Payment

The Client shall pay a monthly service fee of INR 150,000 plus applicable taxes. Invoices are payable within 15 days of receipt. Amounts overdue by more than 15 days may incur interest at 1% per month, subject to applicable law.

3. Term and Renewal

This Agreement begins on 1 September 2026 and remains effective for twelve months. The Agreement may be renewed for additional twelve-month periods if both parties agree in writing at least 30 days before expiry.

4. Termination

Either party may terminate this Agreement for material breach if the breach is not cured within 30 days after written notice. Either party may terminate immediately if the other party becomes insolvent or ceases substantially all business operations. The Client may terminate for convenience by providing 30 days' written notice, subject to payment of all undisputed amounts accrued before termination.

5. Confidentiality

Each party must protect confidential information received from the other party and may use such information only for purposes of performing this Agreement. Confidential information shall not be disclosed to a third party except to authorized personnel, professional advisers, or where disclosure is required by law.

6. Data Protection

The Service Provider shall implement reasonable technical and organizational safeguards for personal data processed on behalf of the Client. The Service Provider shall notify the Client without undue delay after becoming aware of a confirmed security incident involving the Client's personal data.

7. Intellectual Property

Pre-existing intellectual property remains the property of its original owner. Subject to full payment, project-specific deliverables created exclusively for the Client shall be assigned to the Client, excluding the Service Provider's reusable tools, frameworks, libraries, and general know-how.

8. Service Levels

The Service Provider shall target 99.5% monthly availability for production services, excluding scheduled maintenance and outages caused by third-party infrastructure outside the Service Provider's reasonable control. Planned maintenance should, where practicable, be communicated at least 24 hours in advance.

9. Indemnity

The Service Provider shall indemnify the Client against third-party claims alleging that a project-specific deliverable, as provided and used in accordance with this Agreement, infringes a third party's intellectual property rights, subject to the exclusions and procedures stated in this Agreement.

10. Limitation of Liability

Except for liability that cannot legally be limited, neither party shall be liable for indirect, incidental, special, or consequential damages. Each party's aggregate liability under this Agreement shall not exceed the fees paid or payable during the six months preceding the event giving rise to the claim.

11. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws applicable in India. The parties shall first attempt to resolve disputes through good-faith negotiation. If a dispute cannot be resolved within 30 days, the courts having jurisdiction in Pune, Maharashtra shall have jurisdiction, subject to any mutually agreed arbitration arrangement.

12. General

Any amendment to this Agreement must be in writing and signed or otherwise formally approved by authorized representatives of both parties. If any provision is held unenforceable, the remaining provisions shall continue in effect. This Agreement constitutes the understanding between the parties regarding its subject matter.

DEMO NOTICE: This document is fictional and created solely for software demonstration and testing. It does not constitute legal advice and should not be used as a real contract.